

August 9, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 11294
(EIGHTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain lab pack quantities of hazardous materials with other materials in lab packs, with partial relief from certain segregation requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.848 in that partial relief is provided from certain segregation requirements.
5. BASIS. This special permit is based on 21st Century Environmental Mgmt., Inc. of Rhode Island's application dated March 3, 2003, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Hazardous materials and wastes classed as Division 4.2, acids classed as Class 8, and cyanides and cyanide mixtures classed as Division 6.1.	4.2, 6.1, or 8 (see paragraph 7.b.)	As applicable	I, II, or III

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings must comply with the provisions of § 173.12(b). Liquid content, by volume, in the drum may not exceed 28% of the volume of the drum. In addition:

1. Steel drums containing corrosive liquids must be lined with a polyethylene liner.
2. The transport vehicle may not contain any explosives, radioactive material, or un-containerized hazardous material or hazardous waste in the same shipment.
3. All packages must be placed on pallets of not less than four inches in height.
4. Cyanide and/or cyanide mixtures may not exceed one pound per inside packaging and five pounds per lab pack.
5. Except as provided in paragraph 7.a.6., a buffer zone for separation between packages containing Division 4.2 material and lab packs containing Class 8 liquids, and between packages containing cyanides or cyanide mixtures and packages containing acids must be a minimum of nine (9) feet.

6. Notwithstanding paragraph 7.a.5, a buffer zone for separation between packages containing Division 4.2 material and lab packs containing Class 8 liquids, and between packages containing cyanides or cyanide mixtures and packages containing acids must be a minimum of six (6) feet, if each lab pack containing Division 4.2 material is surrounded by cushioning material and enclosed in an overpack, and if each lab pack containing cyanides or cyanide mixtures is surrounded by cushioning material and enclosed in an overpack.

7. The buffer zone required in paragraph 7.a.5. or paragraph 7.a.6. may be established by any means that ensures that commingling of hazardous materials would not occur in the event of leakage from any package that is required to be separated from another.

8. Transportation must be by private or contract carrier only.

b. This special permit does not authorize the use of the lab pack exceptions of § 173.12(b) for materials prohibited from such use by paragraph § 173.12(b)(3).

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING: In addition to the markings required by 49 CFR each packaging must be marked "DOT-SP 11294" in letters at least one-half inch high on a contrasting background.

d. Packagings permanently marked 'DOT-E 11294', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or

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until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 11294'.

e. Shipping papers displaying 'DOT-E 11294' may continue to be used until October 1, 2007, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat.

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1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: STH/sln